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AIR FORCE RESEARCH LABORATORY
(AFRL)

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Logistics Staff

FORMULATION AND OVERSIGHT OF DOMESTIC ALLIANCES

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This instruction implements Department of Defense Instruction (DoDI) 4000.19, *Support Agreements* and Air Force Instruction (AFI) 25-201, *Intra-Service, Intra-Agency, and Inter-Agency Support Agreement Procedures*. The instruction provides basic policy, responsibilities, and procedures applicable to the formation and ongoing management of various types of domestic support agreements, herein called alliances, which include strategic and tactical alliances with other domestic governmental organizational entities, and internal AFRL agreements. This instruction applies to all AFRL personnel. This instruction does not apply to agreements outside those covered by DoDI 4000.19, for example, international agreements or Cooperative Research and Development Agreements. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) AFI 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Systems (AFRIMS) Records Disposition Schedule (RDS). Refer recommended changes and questions about this publication to the OPR, using DAF Form 847, *Recommendation for Change of Publication*; route DAF Forms 847 through the appropriate functional chain of command. This publication may be supplemented at any level, but all direct supplements must be routed to the Office of Primary Responsibility (OPR) of this publication for coordination prior to the certification and approval. No waivers may be granted for any part of this publication.

SUMMARY OF CHANGES

This publication is revised to reflect AFRL's organizational changes, particularly with the establishment of the Strategic Partnership directorate. Additionally, this revision delegates signature authority to the Deputy Technology Executive Officer for Space (CJ) for space-related agreements. Finally, the revision requires AFRL Mission Directorates and the 711th Human Performance Wing (HPW) to maintain the enterprise agreements database.

1. Overview. This instruction satisfies the need for a corporate, business-oriented approach to domestic partnerships to execute the AFRL Science & Technology (S&T) Mission. This instruction applies to any alliance formed between AFRL and governmental organizations (Federal, federally recognized Indian tribe, state, or local) and augments the guidance in DoDI 4000.19 and AFI 25-201 to be used in the formulation of these alliances, with the exception of Host-Tenant Agreements and Training Affiliation Agreements. No further guidance is provided for Host-Tenant Support Agreements beyond the referenced DoDI and AFI nor for Training Affiliation Agreements, which are governed by AFMAN 41-108, *Training Affiliation Agreement Program*. Whenever an AFRL organization enters an arrangement with an organization outside AFRL, there must be a written agreement that describes what the arrangement will be and how resources will be exchanged and protected.

1.1. Alliances are joint or collaborative working relationships between AFRL and domestic governmental organizations. Alliances are formalized in various forms of documented support agreements depending on the nature of the collaboration or mutual support to be provided.

1.2. The AFRL Commander (AFRL/CC) is the primary signatory authority for all strategic alliances and multi-directorate agreements documented using the format directed IAW DoDI 4000.19. AFRL/CC also delegates this authority to the AFRL Executive Director (AFRL/CA), the AFRL Deputy Commander (AFRL/CD), the AFRL Chief Technology Officer (CT), and the Deputy Technology Executive Officer for Space (CJ). Functional Directorate (FD) Directors, Mission Directors, or the 711th Human Performance Wing (HPW) Commander may sign agreements using this format when the agreement is tactical in nature, does not involve other AFRL Directorates, and where the other signatories are of commensurate levels.

1.3. Types of Support Agreements

1.3.1. FS Form 7600A. As prescribed by the DoDI 4000.19, the FS Form 7600A must be used to document the General Terms and Conditions of a support agreement between parties that requires a transfer of funds. FS Form 7600A may be used for agreements that have a mixture of reimbursable costs for support services and non-reimbursable support. A FS Form 7600A may also be used to document and record agreements without reimbursement.

1.3.2. Memorandum of Understanding (MOU). An MOU is generally used to document a broad, mutual understanding between any two or more parties that does not contain an expectation of payment, and under which the parties do not rely on each other to execute or deliver on any responsibilities. Additionally, an MOU can be used with government organizations external to AFRL to document areas of mutual interest with the intent to share information and maintain cognizance of relevant activities without an intention to establish any interdependency. Signatories are not dependent on the actions of the other party.

1.3.3. Memorandum of Agreement (MOA). MOAs document the specific terms and responsibilities between two or more parties and may involve the commitment or exchange of significant resources. When a support agreement involves reimbursement, an MOA can be used to further detail terms and conditions in addition to the FS Form 7600A. An MOA establishes an interdependent collaboration where the actions of each party depend on actions of the other party.

1.3.4. Letter of Agreement (LOA). Used to document agreements between internal AFRL organizations. LOAs generally document the co-location of personnel, use of facilities, reimbursement for services, and are prepared in letter format. A separate letter of transmittal is not required, as the LOA consists of the letter and agreement in one document. LOAs are prepared for the approval and signatures of the FD and Mission Director(s) and the 711 HPW Commander involved in the agreement.

1.4. Type of Alliances

1.4.1. Strategic Alliances are of AFRL-wide corporate interest, which impacts multiple Technology or Functional Directorates and/or the 711HPW. Capabilities acquired or shared are unique and cannot or will not be produced in-house. There is a mutual benefit derived from the partnership. The strategic alliance is long term with a large resource commitment. Strategic alliances may be supported by subordinate tactical alliances.

1.4.2. Tactical Alliances do not have an AFRL-wide corporate impact or interest. Capabilities acquired are unique and are not currently produced in-house. Tactical alliances are generally short-term agreements with a specific resource commitment.

1.5. Agreements for the temporary assignment of federal civil service personnel between AFRL and another DoD component will be entered into in accordance with section 3341 of Title 5, U.S.C. and AFRLMAN 36-104, *Laboratory Personnel Demonstration Project* and will be documented with an MOA. Agreements for the temporary assignment of federal civil service personnel between AFRL and a Federal agency will be entered into in accordance with DoDI 1000.17, *Detail of DoD Personnel to Duty Outside of the Department of Defense*, and AFRLMAN 36-104 and will be documented with an MOA.

2. Roles and Responsibilities.

2.1. AFRL/CC. The AFRL Commander is the final signatory for all AFRL Strategic Alliances. AFRL/CC also delegates signature authority for strategic alliances to AFRL/CD, AFRL/CA, AFRL/CT or AFRL/CJ. AFRL/CC/CD/CA/CT and CJ will engage with and proactively seek, potential alliance partners at the strategic level. AFRL/CC, CD, CA, CT, or CJ will participate in annual alliance reviews for strategic alliances, which are identified for review by the AFRL Alliance Manager (AM), AFRL Strategic Partnership Directorate (SP). AFRL/CC will ensure that sufficient resources are available to support the AFRL alliance process at the corporate level.

2.1.1. AFRL/CC delegates signature authority of all AFRL strategic alliances that relate only to Vanguard Programs to the AFRL Integrated Capabilities Director.

2.1.2. AFRL/CC delegates signature authority of all AFRL strategic alliances that relate only to USSF collaborations to AFRL/CJ.

2.2. AFRL Strategic Partnership Directorate. AFRL/SP is the OPR for the alliance process. AFRL/SP will chair a review of existing AFRL strategic alliances annually.

2.2.1. AFRL/SP is the staffing office for all domestic alliances requiring AFRL/CC signature.

2.2.2. AFRL/SP is responsible for the infrastructure to support archiving AFRL alliance information and for security aspects of the alliance process. AFRL/SP will establish and maintain (but not populate) an AFRL enterprise agreements database that will allow approved users' universal access to all AFRL alliances.

2.2.3. AFRL Domestic Partnerships Division (AFRL/SPD). AFRL/SPD is the day-to-day process owner of the alliance process. AFRL/SPD is the OPR for training and instruction and will generate associated updates when necessary. AFRL/SPD will assign an AFRL AM that is responsible for the overall alliance process and provides guidance and training to all directorate/wing AM, as well as assigning an AM to assist with FD agreements.

2.3. AFRL Contracting Directorate (AFRL/PK). AFRL/PK is responsible for independent review of any proposed strategic alliance to identify potential contracting issues and/or requirements. Review includes alliance adherence to AFRL investment policy. Proposed tactical alliances will be reviewed by the supporting contracting office to identify potential contracting issues and/or requirements.

2.4. AFRL Legal Office (AFRL/JA). AFRL/JA is responsible for legal review of any proposed strategic alliance. JA may also review tactical alliances and agreements upon request of the AFRL mission directorate or 711HPW.

2.5. AFRL Directorate of Personnel (AFRL/DP). Upon request, AFRL/DP is responsible for review of any proposed strategic alliance to identify potential manpower or personnel issues and/or requirements.

2.6. AFRL Financial Management Directorate (AFRL/FM). Upon request, AFRL/FM is responsible for review of any proposed strategic alliance to identify potential financial management issues and/or requirements.

2.7. AFRL Mission Directorates and 711 HPW.

2.7.1. AFRL/RS Director. The RS Director is the final signatory for tactical and strategic Alliances related to AFRL Vanguard Programs.

2.7.2. FD Directors, Mission Directors and the 711 HPW Commander. The FD Directors, Mission Directors and 711 HPW Commander are the final signatories for tactical alliances in their respective directorates. The FD Directors, Mission Directors and 711 HPW Commander may delegate signature authority for all tactical alliance agreements to the division or branches, respectively. All delegations must be in writing. Each Director will ensure compliance with this instruction by all managers, support personnel, and scientists/engineers within the directorate/wing. Each Director is responsible for securing all necessary resources for operating the alliance process at the directorate/wing level. The Director is responsible for overseeing the alliance process for their directorate/wing as set forth in this instruction. The Director will assign an individual AM to manage the creation, execution, review and tracking of the directorate's alliances.

2.7.3. Functional, Division or Branch Chief. Functional Directorates, Mission Directorates, and 711 HPW Division or Branch Chiefs, if delegated by the FD Director, Mission Director or 711 HPW Commander, may sign tactical alliances pertaining only to those divisions or branches, respectively.

2.7.4. Scientific and Technology Managers (STM). STMs (Program Managers (PMs) and Scientists & Engineers (S&Es)) are the action officers that develop and manage the S&T programs, projects and work units. STMs are the technical points of contact for alliance agreements. STMs work with the AM to develop the tactical Domestic Alliance documents. For FD, Mission Directorate, and 711 HPW alliances, reviews by JA and appropriate functional offices should also be obtained as appropriate. STMs manage the relationship with the other organization POC and conduct the annual review to verify the agreement is still valid and required. STMs also conduct reviews when changing conditions or costs may require substantial modification to or termination of the agreement.

2.7.5. Functional Directorate, Mission Directorate, and 711 HPW AMs. The AM is the process owner and process manager for the Directorate or 711 HPW alliances. Duties include record keeping, assisting with document formulation, assisting with staffing for both review and approval, and day-to-day management of alliance processes and product formulation. The AM provides quality control functions to ensure the agreements are prepared accurately and supporting division coordination is obtained prior to staff coordination/signature. The AM provides guidance and training as needed to their directorate or wing personnel. The Directorate or Wing AM will support the AFRL-level strategic alliance review as required. Prior to alliance generation, the AM will coordinate with the Directorate or 711 HPW Office of Research and Technology Applications (ORTA) to ensure there are no other technology transfer agreements that are more appropriate for the desired collaboration/ partnership. The AM will make use of the enterprise agreements database, provided by AFRL/SP, for the generation and record keeping of all alliances. The AM will maintain an alliance file in the enterprise agreements database for each agreement to include the MOA, MOU, or LOA and the STM's required reviews of each alliance.

3. AFRL Alliance Steps and Procedures. Once the need for an alliance has been established, the STM will contact the AM to initiate the alliance document generation process. The AM will guide the STM through the process and provide sample documents formats. An Alliance Checklist (**Attachment 2**) is provided to aid in the process. The process of creating a new alliance of any type consists of the following steps:

3.1. Assessment Step. The STM will coordinate with the AM to evaluate if a Strategic Alliance exists between AFRL and the agreement organization. The STM and AM will assess whether or not an existing Strategic Alliance document facilitates the desired collaboration between the two organizations or if a new tactical alliance document is required.

3.2. Coordination Step. The STM will coordinate the terms of the agreement with the external organization ensuring that the information required by the sample agreements in DoDI 4000.19 is included, regardless of the format used. Administrative assistance will be provided by the AM.

3.3. Execution Step. The STM will execute the alliance for the directorate or wing at the division or branch level. It is the STM's responsibility to ensure that the execution of the agreement stays within the approved scope of effort. If additional work is necessary, that is outside the scope of the original agreement, an amendment to the agreement must be signed by both parties.

3.4. Annual Review Step. The STM shall review all alliance agreements on an annual basis to ensure the database agreements are still necessary and that all terms and conditions are still applicable. The annual review for each agreement should be documented. Once complete, the review documentation should be added to the agreements supporting documentation folder in the enterprise agreements database.

3.5. Closeout Step. Generally, alliances will close upon expiration of the document. In the case where the parties decide to terminate early, the AM helps the STM terminate the alliance with the Alliance Partner by generating a termination document (a letter or email is acceptable) and updating the enterprise agreements database to reflect alliance termination.

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Attachment 1

GLOSSARY OF REFERENCES, FORMS, AND SUPPORTING INFORMATION

References

DoDI 4000.19, *Support Agreements,* 16 December 2020

DoDI 1000.17, *Detail of DoD Personnel to Duty Outside of the Department of Defense*

AFI 25-201, *Intra-Service . Intra-Agency, and Inter-Agency Support Agreement Procedures,* 18 October 2013

AFI 33-322, *Records Management and Information Governance Program*

AFMAN 41-108, *Training Affiliation Agreement Program,* 21 August 2019

AFRLMAN 36-104, *Laboratory Personnel Demonstration Project*

Prescribed Forms

None

Adopted Forms

DAF Form 847, *Recommendation for Change of Publication*

Abbreviations and Acronyms

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFRIMS—Air Force Records Information Management System

AFRL—Air Force Research Laboratory

AFRLMAN—Air Force Research Laboratory Manual

AM—Alliance Manager

DoDI—Department of Defense Instruction

FD—Functional Directorate

HPW—Human Performance Wing

IAW—In Accordance With

LOA—Letter of Agreement

MOA—Memorandum of Agreement

MOU—Memorandum of Understanding

OPR—Office of Primary Responsibility

ORTA—Office of Research and Technology Applications

PM—Program Manager

POC—Point of Contact

RDS—Records Disposition Schedule

S&E—Scientist and Engineer

S&T—Science & Technology

STM—Scientific and Technology Manager

Terms

Alliances—Alliances are expressions of intent agreements used to document joint or collaborative working relationships with domestic governmental organizations external or internal to AFRL.

Alliance Manager—Process owner and manager for the directorate's alliances.

Cooperative Research and Development Agreement—principal mechanisms used by federal laboratories to engage in collaborative efforts with non-federal partners to achieve the goals of technology transfer

Memorandum of Agreement—used exclusively with governmental organizations external to AFRL. These instruments define how each organization will work together to accomplish specific goals. MOAs document roles, responsibilities, resources, loan/transfer of equipment, and data rights for each partner organization. An MOA includes either a commitment of resources or binds a party to a specific action.

Memorandum of Understanding—used exclusively with governmental organizations external to AFRL. MOUs define broad areas of understanding and establish an overarching agreements framework for interaction between AFRL and external organizations. They define areas of collaboration/cooperation and identify focal points. MOUs neither include a commitment of resources nor bind a party to any specific action.

Strategic Alliances—Alliances with AFRL-wide corporate interest affecting multiple technical directorates Capabilities acquired or shared are unique and cannot or will not be produced in-house. There is a mutual benefit derived from the partnership. The strategic alliance is long term with a large resource commitment. Strategic Alliances may be supported by subordinate tactical alliances.

Tactical Alliances—agreements that do not have an AFRL-wide corporate impact or interest. Capabilities acquired are unique and are not currently produced in-house. Tactical Alliances are generally short-term agreements with a specific resource commitment.

Technology Transfer—the process by which existing knowledge, facilities, or capabilities developed under federal research and development funding are utilized to fulfill public and private needs.

Attachment 2

AFRL ALLIANCE CHECKLIST

Table A2.1. AFRL Alliance checklist.

AFRL ALLIANCE CHECKLIST:
Title:
POC Organization:
STM (name and contact info):
AM (name and contact info):
Alliance Partner:
Does this alliance support a (strategic) master agreement? Y N
Master Agreement Title/Number_____
Alliance control number:
DOES THE AGREEMENT CONTAIN THE FOLLOWING?
1. Introduction: Y N (Identify each participating organization and briefly state the purpose of the document.
2. Object and Scope: Y N
3. Statement of Authority: Y N
4. Anticipated Results: Y N
5. Responsibilities: Y N (Enumerate the responsibilities and specific roles of each party. Use the name of the individual Directorate responsible for the effort. Joint responsibilities should be listed as such.)
6. Resources (may be attachment for ease of modification) a. Funding: Y N (Funding element numbers and project numbers for each participating organization and funding levels by fiscal year including current and planned.)
b. Manpower: Y N (Levels, types, skills, etc.)
c. Other: Y N (Facilities, special hardware, flight testing)
7. Contracts: Y N (Anticipated contracts to be used, if any. If contracting time is critical, coordination with the procurement/technical organization is recommended.)

8. Reporting Requirements: Y N (Technical, management and documentation)
9. Terms of Understanding: Y N (Date that this document is effective and expires; identify organization having lead/overall authority; agreed limits to fiscal liability (if any) and other special terms.)
10. Provisions for review, change and termination: Y N (Period of review (at least annually); changes (usually by mutual consent); termination statement (may also be changed, usually by mutual consent but also may be made unilaterally by either party with written notice of 20 days up to 1 year.))
11. Key Personnel: Y N (List at least one contact from each organization; include office symbol and phone. May be in form of attachment for ease of change.)
12. Signature Blocks: Y N (List each organization's name with space for signature and date (type in name and title of all signatories, including space for the date for each signatory). All signatures must be of equal authority levels.)
13. Mandatory for all AFRL Agreements: Y N Duration of agreements: MOUs, MOAs, and 7600As cannot have terms greater than ten years, with renewals not exceeding two years. All AFRL resource commitments are based on availability of funding, facilities, and manpower. AFRL will make every effort to coordinate potential reductions in resource commitments with agreement partners but reserves the right to withdraw resources unilaterally.
14. Signed agreement uploaded into enterprise agreements database. Y N